

SUPREME COURT STATE OF NEW YORK
COUNTY OF NEW YORK _____ X

ANDRE FUTRELL and JENNIFER STRICKLAND,

Plaintiffs,

- against -

ECF
COMPLAINT
INDEX NO.
JURY TRIAL DEMANDED

CITY OF NEW YORK, NEW YORK COUNTY
DISTRICT ATTORNEY'S OFFICE, THE NEW YORK CITY POLICE
DEPARTMENT, AND DETECTIVE MARGARITA NEGRON,
SHIELD NO. 2269, 33rd PRECINCT DETECTIVE SQUAD,
IN HER INDIVIDUAL AND OFFICIAL CAPACITY,

Defendants,

_____ X

1. Plaintiffs Andre Futrell and Jennifer Strickland, by and through their attorney, Welton K. Wisham, of the Law Office of Welton K. Wisham, alleges upon information, and belief, the following against Defendants, The City of New York, New York County District Attorney's Office, The New York City Police Department, and Detective Margarita Negron, that;

JURISDICTION

2. This Court has personal jurisdiction over the Defendants because the Defendants transacted business within the State of New York within the meaning of CPLR Section 302(a) (1), New York County which caused injury to the Plaintiffs within the State of New York.

3. This Court also has concurrent jurisdiction over Plaintiff's civil rights causes of action arising pursuant to 42 U. S. Code Section 1983.

VENUE

4. The Plaintiff selects New York County as the place of trial . Venue is predicated on Defendant's residence in New York County at the time this action was commenced and where a substantial part of the events and omission giving rise to Plaintiff's Claims occurred as set forth under McKinney's Consolidated Laws of New York Civil Practice Law and Rules Section 503(a).

PARTIES

5. Plaintiff Andre Futrell is a citizen of the United States. Mr. Futrell is a resident of the State of Connecticut.

6. Plaintiff Jennifer Strickland is a citizen of the United States and at all relevant times herein resided in the State of Connecticut.

7. Mr. Futrell falsely accused, arrested on or about December 16, 2019, and imprisoned for a period of seven days without probable cause or legal justification and charged with the underlying crimes: Attempted Unlawful Imprisonment, Penal Law Section 110/135.10, Unlawful Imprisonment in the Second Degree per Penal Law Section 135.05, Aggravated Harassment in the Second Degree, Penal Law Section 240.30(4), and Menacing in the Third Degree, Penal Law Section 120.15.

8. All charges against Plaintiff Futrell were favorably dismissed on May 11, 2021.

9. Jennifer Strickland was falsely imprisoned and placed under arrest by Defendant Detective Negron on or about December 16, 2019, inside the 33rd police precinct during an interrogation by Detective Negron. Ms. Strickland was subsequently released and not charged.

10. That the Defendant, City of New York, is a municipal corporation within the State of New York.

11. That Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

12. That at all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

13. At all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers which resulted in the False Arrest and Imprisonment of the Plaintiffs.

14. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

15. That at all times relevant hereto, Defendant City of New York was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

16. That police officer, Detective Margarita Negrón, upon information, and belief, was at all times relevant hereto under the command of the NYPD, 33rd police precinct Detective Squad located in New York City, New York.

17. That Detective Negrón knew, or should have known that Mr. Futrell and Ms. Strickland had not been engaged in criminal activity on or about December 18, 2019.

18. That Detective Negrón was at all times herein relevant, a state actor, acting within the scope of her employment as a New York City Police Officer and as an agent, servant and employee of the City of New York Police Department.

19. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City, and State of New York.

20. That upon information and belief, officer Detective Negrón filed a criminal information charging Plaintiff Futrell with the said crimes as set forth herein.

21. That the Defendant officer knowingly gave false information to the New York District Attorney's Office for the purpose of commencing a criminal proceeding against Plaintiff Futrell without probable cause.

PROCEDURAL HISTORY

22. Plaintiff Andre Futrell in furtherance of his cause action brought against the Defendants herein relating to Malicious Prosecution pursuant to New York State law, timely filed a Notice

of Claim against the City of New York on May 25, 2021, pursuant to Municipal Law Section 50-h and in accordance with New York State Law.

23. Mr. Futrell appeared on June 21, 2021, via Zoom and gave testimony related to his Claims in accordance with New York State and General Municipal Law.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and served on the Defendants identified herein and that the City of New York has failed to pay or adjust the Plaintiff's claims.

25. This action is being filed within one year and ninety days from the date of the dismissal of all charges filed against the Plaintiff to protect Mr. Futrell's rights under New York State Law related to the prosecution against the Defendants for Malicious Prosecution.

26. Mr. Futrell's and Ms. Strickland's causes of action are also brought pursuant to 42 U.S.C. Section 1983, related to the violation of Plaintiff's Constitutional rights.

27. Plaintiff have suffered undue emotional stress from being deprived of their liberty interest without probable cause or legal justification.

28. That the Plaintiffs seeks compensation for their injuries in an amount which is in excess of the minimal jurisdictional limits of all the lower Courts of the State of New York.

29. The Plaintiffs also seeks an award of costs and reasonable Attorney fees associated with the prosecution of the instant action and any other and further relief as this court deems just and proper.

STATEMENT OF FACTS

30. On December 18, 2019, at approximately 9:28 p. m., Mr. Futrell was taken into custody as he was driving Jennifer Strickland's motor vehicle, a 2013 Mercedes Benz bearing Connecticut license plate number AN35569 along Interstate 95 near Rye, New York.

31. Ms. Strickland and Mr. Futrell have resided together for several years and commonly refer to themselves as husband and wife although they are not legally married.

32. As Mr. Futrell was driving his vehicle along the highway, he observed police helicopters hovering above his vehicle.

33. Several police vehicles followed Mr. Futrell and ordered Plaintiff to stop.

34. Mr. Futrell pulled his vehicle over as ten or more police officers got out of their vehicles with weapons drawn, and pointed their weapons directly into the face of the Plaintiff.

35. Mr. Futrell was immediately handcuffed and taken into custody.

36. Plaintiff was taken to the Rye New York Police Department where he was placed in a jail cell and held for several hours.

37. After spending approximately seven hours in jail, Mr. Futrell was transported by Detective Negron of the New York City Police Department and taken to the 33rd police precinct where he was handcuffed, fingerprinted, and photographed and placed in a jail cell.

38. Detective Negron drafted a Criminal Information which accused Mr. Futrell of violating Attempted Unlawful Imprisonment, Penal Law Section 110/135.10, Unlawful Imprisonment in

the Second Degree per Penal Law Section 135.05, Aggravated Harassment in the Second Degree, Penal Law Section 240.30(4), and Menacing in the Third Degree, Penal Law Section 120.15.

39. Mr. Futrell denied all the accusations throughout his arrest, and prosecution.

40. Mr. Futrell admitted however that on December 16, 2019 at West 157th street, near Broadway in New York City, Mr. Futrell and Jennifer Strickland were in Ms. Strickland's motor vehicle driving along Broadway when Mr. Futrell saw a woman walking on the sidewalk who he believed was a female acquaintance.

41. Mr. Futrell got out his vehicle and playfully patted the woman on her shoulder.

42. Mr. Futrell did not grab the female around her waist nor did Mr. Futrell attempt to place the female under his control as claimed in the Criminal Complaint.

43. The female that Mr. Futrell approached was not the person whom he believed was his friend.

44. Mr. Futrell immediately apologized to the woman by saying " my bad, sorry, I thought you were someone else.

45. Plaintiff immediately turned around and began to walk away when the woman began screaming and cursing Mr. Futrell.

46. Jennifer Strickland witnessed the entire event.

47. Mr. Futrell got back inside his vehicle and drove away .

48. That upon information and belief, the entire incident was captured on video by a commercial enterprise operated on Broadway directly in front of the scene which substantiates Mr. Futrell's account of the events.

49. On or about December 18, 2021, Mr. Futrell was arrested and charged with Attempted Kidnapping and Unlawful Imprisonment, both Felonies under New York State Penal Code.

50. Mr. Futrell was represented by the Legal Aid Society attorney who on behalf of Mr. Futrell and informed the Assistant District Attorney that the charges were a fabrication and that Mr. Futrell was in fact innocent of all charges.

51. Mr. Futrell's attorney informed the District Attorney's Office that there was a video recording by one of the commercial establishments and that the district attorney and the police had a duty and an opportunity to verify the account by the unidentified female.

52. The District Attorney prosecuting the case willfully and knowingly failed to verify the existence of the video.

53. Mr. Futrell's criminal attorney indicated that the District Attorney failed to produce any discovery throughout the criminal prosecution, a clear violation of Brady v. Maryland, 373 U.S. 83 (1973)(Prosecution must turn over all exculpatory evidence to the criminal Defendant), thereby willfully and knowingly violating Plaintiff's right to Due Process of Law under the Fourteenth Amendment to the Constitution of the United States.

54. Detective Negrón and the New York City Police Department had a duty to investigate the allegations by the unidentified female which allegedly occurred on a public street and they willfully and knowingly breached such duty and ignored Mr. Futrell's innocence.

55. The Defendants caused Mr. Futrell to be deprived of his liberty for seven days.

56. Mr. Futrell's criminal attorney sought an investigator to go and canvass the area where the alleged crime took place and make inquiries with the commercial merchants as to whether or not there was a video tape recording of the alleged incident.

57. The attorney found a copy of the video which clearly supported Mr. Futrell's statements made to the underlying officer which clearly showed that Mr. Futrell had not violated that law as claimed.

58. The video was turned over to the district attorney's office, yet the City of New York continued the prosecution of Mr. Futrell.

59. The video tape was made available on or about December 24, 2019, causing the district attorney's office drop the felony charges, yet the Misdemeanors charges were continued without probable cause.

60. The New York District Attorney's Office continued the prosecution of the other crimes without probable cause.

61. That on or about December 19, 2019, Jennifer Strickland received a telephone call from Detective Negrón who informed Ms. Strickland that could come to the 33rd police precinct and retrieve her motor vehicle that was seized during Mr. Futrell's arrest on December 18, 2019.

62. Ms. Strickland arrived at the precinct on or about December 19, 2021, and was met by Detective Strickland who placed Strickland inside a room that was locked and began to interrogate Ms. Strickland regarding her knowledge of the events that occurred on December 16, 2019.

63. Plaintiff Strickland was immediately placed in a room with Detective Negrón who began to intimidate Plaintiff by threatening Ms. Strickland with arrest and showing her photographs of Ms. Strickland and her vehicle.

64. Ms. Strickland informed officer Negrón that the female encountered by Mr. Futrell walk away from Mr. Futrell without incident and that Mr. Futrell had engaged in wrongdoing at any time that he mistakenly approached the unidentified female.

65. Detective Negrón informed Ms. Strickland that she was under arrest.

66. Ms. Strickland was conscious of her imprisonment and did not give consent for her confinement.

67. Plaintiff Strickland was held in custody for approximately four hours.

68. Detective subsequently told Ms. Strickland that she was free to leave but that she could not get her vehicle back because it was under investigation.

69. Mr. Futrell's criminal defense attorney requested a copy of any video that captured the alleged incident on December 16, 2019.

70. The District attorney failed to provide the video to the criminal defense attorney.

71. The New York Criminal Court set bail against Mr. Futrell in the amount of \$ 600,000, causing Mr. Futrell to be incarcerated for approximately seven days.

72. The District Attorney dismissed all charges against Mr. Futrell upon reviewing the tape which substantiated the fact that no crime had been committed by Mr. Futrell.

73. The New York City Police Department did not release Ms. Strickland's motor vehicle until December 24, 2019.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF ANDRE FUTREL AND
JEFFIFER STRICKLAND AGAINST DEFENDANT, DETECTIVE MARGARITA
NEGRON FOR FALSE ARREST AND FALSE IMPRISONMENT AND
UNREASONABLE SEARCH AND SEIZURE PURSUANT TO
42 U.S. C. SECTION 1983.**

74. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "73" with the same force and effect as though more fully set forth at length herein.

75. That at all times herein mentioned the Plaintiffs, were held against their will and were conscious of their confinement.

76. The Plaintiffs were not free to leave from the confinement imposed on them by the New York City Police Department and by Detective Negron.

77. Neither Plaintiff consented to their confinement as set forth above.

76. That Defendants violated the Plaintiff's Fourth Amendment right to be free from unreasonable searches and seizure.

77. That the Plaintiffs were cause to suffer emotional pain, humiliation, and degradation, due to the Defendant's police office failed to investigation and obtain credible evidence relating to the false allegations made against Mr. Futrell and prior to his arrest.

78. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably seized Mr. Futrell and Ms. Strickland without probable cause to have reasonably believed that either Plaintiff had been engaged in criminal activity.

79. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably seized the Plaintiffs.

80. Plaintiffs Futrell and Strickland suffered emotional distress, trauma, embarrassment, ridicule, scorn, and deprivation of their civil rights caused by the Defendant officer Negron..

81. Defendant Negron under color of state law and acting within the scope of her employment with the New York City Police Department, acted with the specific intent to deprive Plaintiffs of their constitutional rights.

82. As direct and proximate result of the Defendant officers' conduct, Plaintiffs were greatly humiliated, embarrassed, and injured, and have been caused to suffer great pain and suffering and mental anguish

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF ANDRE FUTRELL
AND JENNIFER STRICKLAND AGAINST THE CITY OF NEW YORK FOR
MUNICIPAL LIABILITY'S FAILURE TO TRAIN, OR DISCIPLINE DETECTIVE
NEGRON PURSUANT TO 42 U.S.C. SECTION 1983.**

83. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "82" with the same force and effect as though more fully set forth at length herein.

84. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff's constitutional rights which caused the violation of such rights.

85. The Defendants unlawful actions were done willfully and knowingly with the specific intent to deprive Plaintiff of his constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

86. That the acts, omissions, and practices alleged herein constitute a pattern or practice of conduct that violates the rights privileges and immunities of the Plaintiffs which are secured or protected by the Constitution of the United States.

87. That the New York City Police Department, and Detective Negron, failed to investigate the claims made by the unknown female against Mr. Futrell and failed to ascertain and produce the video tape made at the time of the incident due to the Defendants' deliberate indifference to Plaintiff's constitutional rights to be free from an unlawful search, seizure, and due process of law.

88. That the Defendants knew or should have known of the existence of a video tape that was available to the Defendants prior to the arrest and prosecution of Mr. Futrell.

89. That the New York City Police Department's failure to supervise and train Defendant Detective Negron in canvassing an area where an alleged crime had taken place in order to ascertain the existence of a video supporting or discrediting an alleged victim of a crime amounts to deliberate indifference to the Plaintiff's Constitutional rights protected under the Fourth, and Fourteenth Amendments.

90. The Defendants had a duty to conduct a reasonable investigation of whether the incident complained of occurred and whether one of the commercial enterprises near the scene of the alleged incident on December 16, 2019, captured the incident on video prior to the seizure and arrest of Mr. Futrell.

91. That the Defendants' deliberate indifference caused the violations of the Constitutional rights alleged herein.

92. That the failure to supervise train and or discipline the Defendant officers in conducting a reasonable investigation of alleged criminal activity resulted in a custom, policy or practice that served as the moving force behind the constitutional violations suffered by Plaintiffs Andre Futrell and Jennifer Strickland.

93. As a direct and proximate result of the foregoing practices and customs, Plaintiff Futrell was unlawfully held in custody for seven days and caused Ms. Strickland to be held in custody for approximately four hours in fear of arrest and without probable cause or legal justification.

94. The policy makers within the New York City Police Department had constructive knowledge of the foreseeable injuries to the Plaintiff due to the deficiencies within the New York City Police Department as set forth above and failed to do anything about it.

95. Plaintiff's rights to be free from arbitrary government actions including the right to be free from unreasonable search and seizure which caused Plaintiffs' injuries without legal justification, was clearly established on December 19, 2019.

96. That the constitutional abuses, and violations by the City of New York through the actions of the Defendant officers and employees, were directly and proximately caused by policies, practices and customs developed, implemented, enforced, encouraged, and sanctioned by the Defendant, City of New York.

97. As direct and proximate result of the Defendant officers' conduct, Plaintiffs were greatly humiliated, embarrassed, and injured, and have been caused to suffer great pain and suffering and mental anguish

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF ANDRE
FUTRELL AGAINST DETECTIVE NEGRON AND THE CITY OF NEW YORK
UNDER 42 U.S.C. SECTION 1983, FOR MALICIOUS PROSECUTION**

98. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 97", with the same force and effect as though more fully set forth at length herein.

99. That the Defendants, City of New York, by their agents, servants and / or agents, including but not limited to Defendant, Detective Negron, were state actors acting within the scope of their employment, who knowingly and maliciously prosecuted and falsely accused Mr. Futrell of committing criminal acts without probable cause.

100. Mr. Futrell was arrested and deprived of his liberty for approximately seven days without legal justification.

101. That Detective Negrón with the assistance of the New York District Attorney's Office continued the prosecution against Mr. Futrell for more than a year causing without probable cause resulting in Plaintiff's compelled appearance in Criminal Court on multiple occasions.

102. That Detective Negrón initiated the criminal proceedings against Mr. Futrell by providing a false written accusatory instrument accusing Plaintiff of multiple crimes as set forth more fully above.

103. That on May 11, 2021, all charges were favorably terminated against Mr. Futrell.

104. That Detective Negrón initiated the criminal charges against the Plaintiff without the necessary element of probable cause to have believed that the Plaintiff committed the offenses as set forth in the Criminal Information.

105. That Defendant Negrón initiated the charges against the Plaintiff with malice against the Plaintiff predicated on the lack of probable cause to have reasonably believed that Mr. Futrell had in fact placed an unknown woman in the back of his motor vehicle in an alleged attempt to kidnap the unknown female as originally charged by Detective Negrón.

106. That the Defendants were responsible for Mr. Futrell's post arraignment appearances in Criminal Court to defend against the baseless charges.

107. That by reason of the foregoing, Mr. Futrell was maliciously prosecuted and held in custody for seven days without probable cause.

108. That Plaintiff and has been greatly injured, and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF ANDRE FUTRELL
AGAINST DETECTIVE NEGRON AND THE CITY OF NEW YORK UNDER 42 U.S.C.
SECTION 1983, FOR VIOLATING PLAINTIFF'S RIGHTS SECURED UNDER THE
DUE PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT TO THE
CONSTITUTION OF THE UNITED STATES.**

109. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs “1 through 108”, with the same force and effect as though more fully set forth at length here herein.

110. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of plaintiffs’ right to free from the deprivation of liberty without due process of law.

111. That the New York County District Attorney’s Office knowingly and willfully violated Mr. Futrell’s right to due process of law during the course of the underlying criminal prosecution which preceded this action when the assistant district attorney knowingly and willfully failed to provide Mr. Futrell evidence that the prosecutors knew was favorable to Mr. Futrell’s criminal defense.

112. That the New York County District Attorney breached their duty to Mr. Futrell, the accused defendant on December 19, 2019, to disclose exculpatory evidence in violation of Brady v. Maryland, 373, U.S. 83 (1963).

113. That the existence of a video tape which clearly showed non-criminal activity engaged in by Mr. Futrell and a female whom Plaintiff reasonably believed he knew was or should have been know to Detective Negron and other members within the New York City Police Department was withheld from Mr. Futrell’s criminal defense attorney.

114. That in the manner described more fully in the above paragraphs, the Defendants deliberately withheld exculpatory evidence, thereby misleading and misdirecting the criminal prosecution of the Plaintiff.

115. Absent the misconduct by the New York County District Attorney's Office and Detective Negron , the prosecution of the Plaintiff could not and would not have been pursued.

116. Plaintiff was thereby caused to suffer an injury in direction violation of the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

117. That the misconduct described herein was objectively unreasonable and was taken with the specify intent to interfere with the Plaintiff's rights to due process of law.

118. That as a direct and proximate result of the acts and omissions of the Defendant police officer, Detective Negron and the New York City District Attorney's Office, Mr. Andre Futrell has been greatly humiliated, embarrassed, and injured, and has been caused to suffer extreme emotional pain, suffering, and mental anguish and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiffs demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiffs compensatory damages in an amount that is fair and equitable to be fixed at trial.

B. Awarding punitive damages to Plaintiffs in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

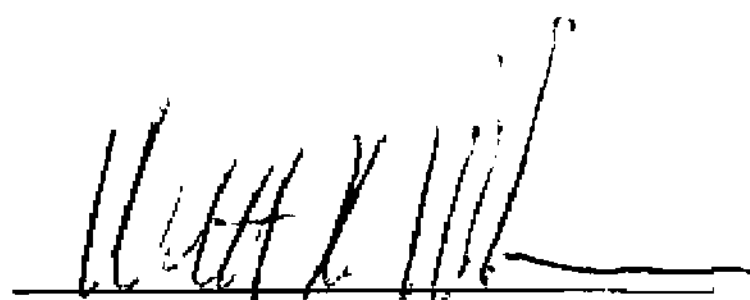
C. An award to the Plaintiffs of the costs and disbursements herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated: August 2, 2021

Bronx , New York

A handwritten signature in black ink, appearing to read 'Welton K. Wisham', written over a horizontal line.

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